

26VECV01390 26VECV01390

County: los-angeles

Division: Civil Law and Motion

Department: 107

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Case Number: 26VECV01390 Hearing Date: September 14, 2026 Dept: 107

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

American

Express National Bank,

Plaintiffs.

v.

Barba

Taupier, et al.

Defendants.

Case Number Department

26VECV01390 107

COURT'S [TENTATIVE]

ORDER RE: ¿

Motion to Vacate Default and Default

Judgment,

Quash Service of Summons, and for Leave
to

File Answer

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Grant in part.

I.

BACKGROUND

This

is a collections action. Plaintiff filed its complaint on March 9, 2026. On June 22, 2026, the clerk entered Defendant's default, and on June 29, 2026, the Court entered default judgment.

On

August 31, 2026, Defendant filed the instant motion to vacate the default and default judgment, quash service of summons, stay enforcement of the judgment, and for leave to file an answer to Plaintiff's complaint.

II.

LEGAL

STANDARD

"The

court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order."

(Code

Civ. Proc., § 473(d).)

III.

DISCUSSION

Defendant's exhibits in support of

her motion demonstrate she is not the person described as the recipient of service in Plaintiff's proof of personal service. (See D. Exh. B [driver's license contradicting description], Exh. C-D [travel records confirming absence from alleged service address].)

Based

on the uncontradicted evidence, the default and default judgment are void for lack of service. The Court grants Defendant's motion to vacate the default and default judgment.

Defendant's

motion to quash service is granted on the same evidentiary basis.

"[N]o

motion [to quash service], or under Section 473 or 473.5 when joined with a motion [to quash], ... shall be deemed a general appearance by the defendant." (Code Civ. Proc., § 418.10(d).) Defendant has not made a general appearance and has therefore not conceded to the Court's jurisdiction. As a result, Defendant's motion for leave to file an answer is denied as unnecessary. Service has not been effected.

Defendant

may file an answer at her discretion; the time for her to do so does not begin to run until she is properly served with the summons and complaint.

IV.

CONCLUSION

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Defendant's motion is GRANTED IN

PART. The Court vacates the default and default judgment. Service of the summons is quashed. Defendant's request for leave to file an an answer is unnecessary, as service has not been accomplished.

Dated: September 14, 2026 Hon.

Eric Harmon

Judge

of the Superior Court